

TENTATIVE RULINGS

LAW & MOTION

DEPT C25

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar.** Do not call the department to verify if you should appear or not. Please read below for the information. **If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 12:00 p.m. the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling.**

June 16, 2026
10:00 AM

If you want a transcript, you must provide your own court reporter.

#	Case Name	Tentative
101	Thayer vs. Newrez LLC 24-01428812	Demurrer to Second Amended Complaint Defendants First American Title Company ("FATCO") and First American Title Insurance Company ("FATIC") (together, "Defendants") demur to all four causes of action in Plaintiff Thomas Thayer's ("Plaintiff") Second Amended Complaint ("SAC"). The demurrer is sustained with leave to amend as to the first, second and fourth causes of action. The demurrer is overruled as to the third cause of action. First Cause of Action for Quiet Title The elements of quiet title include: (1) plaintiff's title and its basis (2) the existence of adverse claims to that title. (Orcilla v. Big Sur, Inc. (2016) 244 Cal.App.4th 982, 1010.) The SAC alleges that Plaintiff acquired title to the Property by purchasing it at a public auction. (SAC ¶

	2.) The SAC alleges that there is a cloud on the title to the Property due to an outstanding home equity line of credit (“HELOC”), which was supposed to have been paid off in 2006 when a new first with Option One Mortgage was recorded. (SAC ¶ 2.) However, the HELOC was never frozen, and the previous owners of the Property (the Kichlines) continued to borrow against the loan, such that there is now an outstanding balance of more than \$100,000. (SAC ¶ 2.) Plaintiff alleges that FATCO issued a check to pay off the loan and that FATIC insured the new first mortgage in favor of Option One. (SAC ¶ 2.) Plaintiff alleges that FATCO and FATIC are included in the quiet title cause of action because they “could pay off any beneficial interests, hold the Note for itself, or even issue of a release of obligation.” (SAC ¶ 24.) Defendants contend that neither Defendant FATCO/Escrow nor FATIC/Title Insurer are asserting any interest in the Property, nor do these defendants have any obligation to reconvey the subject DOT. In opposition, Plaintiff contends that “Code of Civil Procedure section 762.060(b) permits joinder of any person who ‘may appear of record’ to have a claim. What First American says today can change tomorrow. Due to First American’s negligence, it could very well payoff the loan and reconvey it.” (Oppn. at 14:23-25.) Plaintiff has cited no authority for the proposition that a party may be sued for quiet title merely because they could pay off a loan. Overall, the SAC does not include any allegations that Defendants currently have any adverse claims to title to the Property. Accordingly, the demurrer to the first cause of action is SUSTAINED with leave to amend. Second Cause of Action for “Damages” (Negligence)
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	Defendants demur to the second cause of action titled “damages” on the grounds that damages are a form of relief and not a cause of action. In opposition, Plaintiff contends that the cause of action is a properly pled cause of action for negligence. The elements of a cause of action for negligence are well established. They are ‘(a) a legal duty to use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury.’” (Ladd v. County of San Mateo (1996) 12 Cal.4th 913, 917.) Here, although Plaintiff contends that all elements have been pled, there are no allegations establishing that Defendants owed a duty of care to Plaintiff or that the duty of care was breached. The only allegation specific to Defendants is that they failed to pay off the loan and refused to issue any reconveyance. (SAC ¶ 35.) Accordingly, the demurrer to the second cause of action is SUSTAINED with leave to amend. Third Cause of Action for Declaratory Relief Defendants contend that Plaintiff’s third cause of action for declaratory relief is duplicative of the first cause of action for quiet title. In opposition, Plaintiff contends that the two causes of action are distinct, as “Quiet title perfects title as against specific adverse claims. (Code Civ. Proc. § 760.020.) Declaratory relief establishes a forward-looking declaration of the parties’ rights and duties on a set of facts. (Code Civ. Proc. § 1060.)” (Oppn at 16:15-17.) As the demurrer is sustained to the first cause of action, there are no longer duplicative causes of action. As to the merits of this cause of action, “[a] general demurrer is usually not an appropriate method for
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testing the merits of a declaratory relief action, because the plaintiff is entitled to a declaration of rights even if it is adverse to the plaintiff's interest." (Qualified Patients Assn. v. City of Anaheim (2010) 187 Cal.App.4th 734, 751.) As recently explained by the Court in Nede Mgmt., Inc. v. Aspen American Ins. Co. (2021) 68 Cal.App.5th 1121, this rule dates back to Maguire v. Hibernia Savings & Loan Soc. (1944) 23 Cal.2d 719, wherein the court held that C.C.P. §1060 "contains no suggestion that the pleader must allege facts entitling him to a favorable declaration." (Nede Mgmt., supra, 68 Cal.App.5th at 1130, citing Maguire, supra, 23 Cal.2d at 730.)

Accordingly, the demurrer to the third cause of action is OVERRULED.

Fourth Cause of Action for Tort of Another

Under the "tort of another" doctrine, a person who through the tort of another has been required to act in the protection of his interests by bringing or defending an action against a third person is entitled to recover compensation for the reasonably necessary loss of time, attorney's fees, and other expenditures thereby suffered or incurred. (Prentice v. North Am. Title Guaranty Corp., Alameda Division (1963) 59 Cal.2d 618, 620; Electrical Electronic Control, Inc. v. Los Angeles Unified School Dist. (2005) 126 Cal.App.4th 601, 617.)

The doctrine does not apply to the ordinary two-party suit. It is for use in cases where the defendant has wrongfully made it necessary for a plaintiff to sue a third person. (See Prentice at 620-21.)

Defendants demur on the grounds that this is a remedy and not a cause of action, and that Plaintiff has not demonstrated any theory of liability against Defendants.

		In opposition, Plaintiff contends that “[t]he Fourth Cause of Action incorporates the underlying allegations and alleges that, as a result of FATCO’s negligence in 2006 and First American’s subsequent refusal to issue a release, Plaintiff was forced to bring this action to clear his title.” (Oppn at 17:13-16.) As Plaintiff has not sufficiently pled a negligence cause of action against Defendants, the tort of another claim also fails. The demurrer to the fourth cause of action is SUSTAINED with leave to amend. Plaintiff shall have 15 days leave to amend the complaint. Defendants’ requests for judicial notice are GRANTED pursuant to Evidence Code §452(h). (See also, Fontenot v. Wells Fargo Bank (2011) 198 Cal.App.4th 256, 265.) Plaintiff’s requests for judicial notice are DENIED. There is no indication that the documents are court records, or any other category of documents judicially noticeable pursuant to the Evidence Code. Rather, the documents are described in the request as “business records of First American.” Defendants to give notice
104	Saucedo vs. Preferred Roofing LLC 25-01494949	1. Motion to Be Relieved as Counsel of Record Joshua I. White and Preetpal S. Toor seek an order relieving them as counsel of record for Plaintiff Rodrigo Serrato Saucedo. Motions to be relieved as counsel pursuant to Code of Civil Procedure § 284(2) are governed by California Rules of Court, Rule 3.1362.